

Some jottings on academic freedom and Plan S/open access

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The announcement of Plan S – an ambitious undertaking to mandate open access in Europe by 2020 on most funded research, but also now expanding overseas, potentially to the States and beyond – has prompted debates about the place of academic freedom in the selection of publication venue and whether OA mandates might infringe on such rights. This is an old debate – [Stuart Shrieber wrote about it in 2009](#). There have also been several pieces that have addressed this topic in the past, of which Johnston, David James, ‘Open Access Policies and Academic Freedom: Understanding and Addressing Conflicts’, *Journal of Librarianship and Scholarly Communication*, 5 (2017) <<https://doi.org/10.7710/2162-3309.2104>> is the most recent, to the best of my knowledge. There’s also Holbrook, J. Britt, ‘We Scholars: How Libraries Could Help Us with Scholarly Publishing, If Only We’d Let Them’ (Georgia Institute of Technology, 2015) <<https://smartech.gatech.edu/handle/1853/53207>>, here citing the repository version, which does a great deal of work on positive and negative liberty in the definitions of academic freedom with respect to publication choice.

On revisiting these preceding publications, they say most of what I wanted to and what I think – and probably in more detail than I can here broach anyway. That said, there are a few points to which I still want to draw attention, without attributing these views to anyone except myself. I don’t, below, go much into the discussion about how different types of OA intersect with academic freedom, but rather take a broader line.

1. Academic freedom is actually very hard to define and varies between jurisdictions. In the UK, the 1988 Education Reform Act is the most explicit that the commissioners should work “to ensure that academic staff have freedom within the law to question and test received wisdom, and to put forward new ideas and controversial or unpopular opinions, without placing themselves in jeopardy of losing their jobs or privileges they may have at their institutions”. There is also a more recent paragraph in the recent Higher Education and Research Act. None of the legal codings of academic freedom in the UK, however, give the right to select publication venue as part of academic freedom so far as I am aware. In the US, this is very different, where longstanding and prominent statements have affirmed the right to the choice of publication venue for the dissemination of work. Specifically, American Association of University Professors, ‘Statement of Principles on Academic Freedom and Tenure’, 1940 <<http://www.aaup.org/report/1940-statement-principles-academic-freedom-and-tenure>> states that “Teachers are entitled to full freedom in research and in the publication of the results”.
2. But this “full freedom [...] in the publication of the results” is a slippery argument. There are many factors that already limit my full freedom to choose to publish in a selected venue. For instance, if an editor at an academic press doesn’t think that my book will fit within their list, s/he may reject it on those grounds. Similarly, if a press doesn’t think that there is a market for a book, it may be rejected outright. Does this curtail my academic freedom? What about when peer reviewers reject an article on any grounds? This also limits my choice to publish in a specific venue, restricting my “full freedom”. What about when I cannot afford the colour page charges, the illustration reprint rights, or other associated fees for publishing, even in non-OA venues? A core hypocrisy, in my view, is that researchers accept many limitations already on their full freedom to publish wheresoever they would like, but the second that a new limitation comes in – even one that could provide a massive public good in the dissemination of scholarship and research – we fall back upon cries of the violation of academic freedom.
3. What is academic freedom *for*? Without going into the diverse literatures that have explored the definitional problems, my view of academic freedom is that it exists to ensure that academics can query things that might otherwise be politically problematic and disseminate these findings without fearing for their lives or livelihoods. In the era of print dissemination, one way that academic freedom could be curtailed was through book burning. Galileo knew this all too well.

So what does it mean when the mandate is for the opposite of book burning? OA is about the dissemination of scholarship *as widely as possible* with no barriers for readers. It is not about suppressing ideas, unless one believes that ideas only exist when they are published in well-known academic venues without OA options. If a scientific paper is published and it's not in *Nature*, is there anyone there to read it? There should be.

4. Following point 3, a charitable remark about the desire of academics to publish in prestigious outlets is that they are *centres of attention*. That is, academics believe their work will be more widely read, *by their respected peers* if it appears in known venues. This is lazy filtering, but it makes some sense in an environment of information overload. A potential counter-argument, then, to all the rest of this post is that if academics can't publish in respected outlets, they feel that their work is being "suppressed" by the fact that it is undifferentiated from the rest of scholarship. It's not a great argument, though, since it seems to me that the actual reason academics seek out prestigious publication venues is that it does a lot for their careers/REF returns (yes, I know what the official rules say)/etc. It also still remains the case that there is no absolute right of academic freedom to publish anywhere, as per point 2.

5. What about the freedom to read? If I am to have "full freedom in research", I would need freedom from want and constraint with respect to access to research materials. The inability to read academic research that I cannot afford is undoubtedly an impediment to my research. It curtails my ability to conduct research that I lack access. This is a great example of the fact that academic freedoms often come into conflict with one another. Your freedom to publish behind a paywall inhibits my freedom to conduct research.